

HOUSE No. 2096

The Commonwealth of Massachusetts

PRESENTED BY:

Michelle M. DuBois

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to workplace safety and disclosure of violations.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michelle M. DuBois</i>	<i>10th Plymouth</i>	<i>1/17/2025</i>

HOUSE No. 2096

By Representative DuBois of Brockton, a petition (accompanied by bill, House, No. 2096) of Michelle M. DuBois relative to workplace safety. Labor and Workforce Development.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1871 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to workplace safety and disclosure of violations.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 30B of the General Laws, as appearing in the 2020 Official
2 Edition, is hereby amended by inserting after section 4 the following section:-

3 Section 4A. (a) For procurement contracts for supplies and services, including
4 construction, that are estimated to cost more than \$50,000, each awarding authority shall ensure
5 that solicitations or invitations for bids require that the offeror represent, to the best of the
6 offeror's knowledge and belief, whether there has been any Occupational Safety and Health
7 Administration citation, notice, decision, or civil judgment rendered against the company, as a
8 sole proprietorship, limited partnership, and/or limited liability partnership/corporation and/or
9 any affiliated business or subsidiary of which the applicant is owner, manager, officer, and/or
10 director within the preceding 4-year period for a violation of the federal Occupational Safety and

Health Act of 1970, 29 U.S.C sections 651 to 678, including any settlement agreement and documentation verifying if hazards identified have been corrected.

(b) An awarding authority, prior to making an award, shall, as part of responsibility determination, provide an offeror with an opportunity to disclose any steps taken to correct any violations of or improve compliance with said federal Occupational Safety and Health Act of 1970, including any settlement agreement and documentation verifying if hazards identified have been corrected.

(c) An awarding authority shall consider the information provided pursuant to subsections (a) and (b) in determining whether an offeror is a responsible source.

(d) For any subcontract where the estimated value of the supplies and services required exceeds \$50,000, an awarding authority shall require that, at the time of execution of the contract, a contractor represents to the contracting agency that the contractor will require each subcontractor to disclose to the awarding authority a citation, notice, decision or civil judgment, rendered against the subcontractor within the preceding 4-year period for a violation of said federal Occupational Safety and Health Act of 1970, said 29 U.S.C sections 651 to 678, including any settlement agreement and documentation verifying if hazards identified, have been corrected, and to provide to the awarding authority updated information every 6 months.

(e) As appropriate, an awarding authority shall refer matters related to information provided pursuant to subsections (a), (b), and (d) of this section to the appropriate agency.

(f) During the performance of the contract, each awarding authority shall require that every 6 months contractors subject to this section update the information provided pursuant to subsection (a).

(g) If information regarding a citation, notice, decision, or civil judgment, rendered against the offeror within the preceding 4-year period for any violations of said federal Occupational Safety and Health Act of 1970, said 29 U.S.C sections 651 to 678, including any settlement agreements and documentation verifying if hazards identified have corrected, or similar information is obtained through other sources, an awarding authority may request a copy of a citation and evidence of abatement of a hazard, and refer the offeror to appropriate agencies if a hazard has not been abated.

(h) An awarding authority shall require that if information regarding a citation, notice, decision or civil judgment, rendered against a contractor's subcontractor within the preceding 4-year period for any violations of said federal Occupational Safety and Health Act of 1970, said 29 U.S.C sections 651 to 678 is brought to the attention of the contractor or similar information is obtained through other sources, then the contractor shall inform the awarding authority and the awarding authority may request a copy of a citation and evidence of abatement of a hazard, and refer the subcontractor to appropriate agencies if a hazard has not been abated.

(i) As appropriate, awarding authorities shall send information provided pursuant to subsection (a) and subsection (d) of this section to the appropriate agency.

(j) Nothing in this section shall preclude the exercise or enforcement of any lawful rights or remedies.

SECTION 2. Section 2 of chapter 82A of the General Laws, as appearing in the 2020 Official Edition, is hereby amended by inserting after the fourth sentence on line 13 the following sentence:- A person making application for a trench excavation permit shall disclose in writing: (a) Any citation, notice, decision or civil judgment rendered against the company, as a

55 sole proprietorship, limited partnership, and/or limited liability partnership/corporation and/or
56 any affiliated business or subsidiary of which the applicant is owner, manager, officer, and/or
57 director within the preceding 4-year period for a violation of the federal Occupational Safety and
58 Health Act of 1970, 29 U.S.C sections 651 to 678, including any settlement agreement and
59 documentation verifying if hazards identified have been corrected; and

60 (b) (i) any prior suspension or revocation of a trench excavation permit held by the
61 applicant; (ii) any assessment of fines in relation to a trench excavation permit held by applicant;
62 (iii) any prior immediate shutdown of a trench site by state or local authorities in relation to a
63 trench excavation permit held by applicant; and (iv) the date of each incident.